

In trusts for sale, the undisposed of proceeds result to the heir, not the executor. — *First*. If real estate be devised upon trust to sell for a particular purpose, and that purpose either wholly fails or does not exhaust the proceeds, the part that remains unapplied, whether the estate has been actually sold or not, will result to the testator's heir, and not to his next of kin (*d*), and if the testator was seised of the [*150] * estate *ex parte maternâ*, the undisposed of interest will result to the maternal heir (*a*). And the whole or surplus will result in this manner, though the proceeds of the realty be blended with personal estate in the formation of one common fund (*b*).

The conversion is only for the purposes of the will. — And even an express declaration that the proceeds of the sale shall be considered as part of the testator's *personal estate* will not prevent the operation of the rule (*c*); for a direction of this kind is construed to extend to the purposes of

Evans, 4 Ves. 21; Walton v. Walton, 14 Ves. 322; Irvine v. Sullivan, 8 L. R. Eq. 673.

(*d*) Starkey v. Brooks, 1 P. W. 390; Randall v. Bookey, Pr. Ch. 102; Stonehouse v. Evelyn, 3 P. W. 252; Robinson v. Taylor, 2 B. C. C. 589; Cruse v. Barley, 3 P. W. 20; Buggins v. Yates, 2 Eq. Ca. Ab. 508; Hill v. Cock, 1 V. & B. 173; City of London v. Garway, 2 Vern. 571; Nicholls v. Crisp, cited Croft v. Snee, 4 Ves. 65; Whitehead v. Bennett, 1 Eq. Rep. 560; Digby v. Legard, 2 Dick. 500; Spink v. Lewis, 3 B. C. C. 355; Chitty v. Parker, 4 B. C. C. 411; Collins v. Wakeman, 2 Ves. jun. 683; Howse v. Chapman, 4 Ves. 542; Williams v. Coade, 10 Ves. 500; Berry v. Usher, 11 Ves. 87; Gibbs v. Rumsey, 2 Ves. & B. 204; Maugham v. Mason, 1 V. & B. 410; Wilson v. Major, 11 Ves. 205; Wright v. Wright, 16 Ves. 188; Hooper v. Goodwin, 18 Ves. 156; Jones v. Mitchell, 1 S. & S. 290; Page v. Leapingwell, 18 Ves. 463; Gibbs v. Ougier, 12 Ves. 416; M'Clelland v. Shaw, 2 Sch. & Lef. 545; Mogg v. Hodges, 2 Ves. 52; Eyre v. Marsden,

2 Keen, 564; *Ex parte Pring*, 4 Y. & C. 507; Watson v. Hayes, 5 M. & Cr. 125; Davenport v. Coltman, 12 Sim. 610; Runnett v. Foster, 7 Beav. 540; Marriott v. Turner, 20 Beav. 557; Smith v. Harding, W. N. 1874, p. 101; Watson v. Arundel, 10 I. R. Eq. 299; &c. Note, Countess of Bristol v. Hungerford, 2 Vern. 645, is misreported — see Rogers v. Rogers, 3 P. W. 194, note (C).

(*a*) Hutcheson v. Hammond, 3 B. C. C. 128.

(*b*) Ackroyd v. Smithson, 1 B. C. C. 503; Jessopp v. Watson, 1 M. & K. 665; Salt v. Chattaway, 3 Beav. 576.

(*c*) Collins v. Wakeman, 2 Ves. jun. 683; and see Amphlett v. Parke, 2 R. & M. 226; Field v. Peckett (No. 1), 29 Beav. 568. Ogle v. Cook, cited in Fletcher v. Ashburner, 1 B. C. C. 502, and in Akroyd v. Smithson, id. 513, was for a long time considered *contra*; but in Collins v. Wakeman, 2 Ves. jun. 686, Lord Loughborough had the Reg. Lib. searched, and it was found the point had been left undecided.